

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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DOMINICK BARNES,

Plaintiff,

-against-

The CITY OF NEW YORK; New York City
Police Department Officer ("P.O.") BRENDAN
BERGEN, Shield No. 3110; Sergeant ("Sgt.")
ROBERT KING, in their individual capacities,

Defendants.
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**COMPLAINT AND DEMAND
FOR A JURY TRIAL**

Index No. 15-CV-5892

Plaintiff, DOMINICK BARNES, by his attorney David B. Rankin of Rankin & Taylor,
PLLC, as and for his complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiff's rights under the Fourth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, as amended, codified as 42 U.S.C. § 1983.
2. Plaintiff Dominick Barnes' rights were violated when he was arrested and subsequently prosecuted without cause.
3. Mr. Barnes seeks an award of compensatory and punitive damages and attorneys' fees.

JURISDICTION AND VENUE

4. This Court has subject matter jurisdiction over federal claims pursuant to 28 U.S.C. §§ 1331, 1343(a) (3-4). This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of the Fourth and Fourteenth Amendments to the Constitution of the United States.

5. Venue is proper pursuant to 28 U.S.C. § 1391(a)(2) in that Mr. Barnes' claim arose in the Southern District of New York.
6. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

PARTIES

7. Plaintiff Dominick Barnes is, and was at all times relevant to this action, a resident of the State of Florida and the County of Seminole.
8. Defendant, THE CITY OF NEW YORK ("CITY"), is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.
9. Defendants, New York City Police Department Officer ("P.O.") Brendan Bergen ("Bergen"), Shield No. 3110; and Sgt. Robert King ("King"), collectively ("Individual Defendants"); were at all times relevant herein, officers, employees and agents of the NYPD.
10. At all times relevant herein, defendant police officers were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.
11. The defendants' acts hereafter complained of were carried out intentionally, recklessly, with

malice, and in gross disregard of Mr. Barnes' rights.

STATEMENT OF FACTS

12. The events herein complained of occurred primarily around 2:00 a.m. on February 3, 2012 in the vicinity of Jerome Avenue and East 193rd Street in the County of the Bronx, in the City and State of New York.
13. Mr. Barnes had been at a family member's house celebrating a birthday during the evening of February 2, 2013 and early morning of February 3, 2013.
14. Mr. Barnes exited the family member's home to use his cell phone.
15. As Mr. Barnes was talking on his cell phone, he was approached by P.O. Bergen and Sgt. King.
16. Mr. Barnes understood P.O. Bergen and Sgt. King were going to issue a parking violation to a car.
17. Mr. Barnes asked the officers to wait for a couple of minutes before issuing a ticket for, presumably, being double parked so he could ask the person responsible for the car to move it.
18. P.O. Bergen and Sgt. King did not wait, and arrested Mr. Barnes.
19. P.O. Bergen handcuffed Mr. Barnes.
20. Sergeant King was watching this take place and did not intervene despite his ability to do so.
21. P.O. Bergen and Sgt. King put Mr. Barnes into the back of their radio mobile patrol car and left the location of the incident to take Mr. Barnes to the 45th precinct for alcohol testing.
22. P.O. Bergen, under penalty of perjury, made false statements on the accusatory instrument against Mr. Barnes. In sum and substance, P.O. Bergen accused Mr. Barnes of driving while intoxicated despite knowing this was false.

23. Mr. Barnes was in custody until being released later that day, February 3, 2013.
24. Mr. Barnes was acquitted at trial of all charges in connection with this incident on May 27, 2014.

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983
(Against Individual Defendants)**

25. Mr. Barnes incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
26. The individual defendants, under color of state law, subjected Mr. Barnes to the foregoing acts and omissions, thereby depriving Mr. Barnes of his rights, privileges and immunities secured by the Fourth and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable seizure of his person; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment; (d) freedom from malicious prosecution by the police; (e) freedom from having police officers fabricate evidence against him; and (f) failure to intervene to prevent the same.
27. Individual defendants' deprivation of Mr. Barnes constitutional rights resulted in the deprivation of his liberty, psychological and emotional injury, humiliation, costs and expenses, and loss of income.

**SECOND CLAIM FOR RELIEF
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS
(Against the City of New York)**

28. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

29. At all times material to this complaint, defendant THE CITY OF NEW YORK had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
30. At all times material to this complaint, defendant THE CITY OF NEW YORK failed to properly train, screen, supervise, or discipline its employees and police officers, including defendants P.O. Bergen and Sgt. King, and failed to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline the individual defendants.
31. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.
32. As a result of the foregoing, plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

JURY DEMAND

33. Mr. Barnes demands a trial by jury in this action on each and every one of his damage claims.

WHEREFORE Mr. Barnes demands judgment against the defendants individually and jointly and prays for relief as follows:

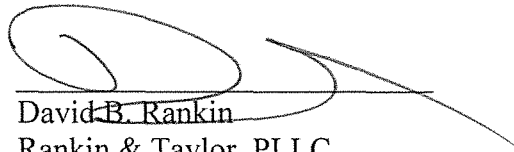
- a. That he be compensated for violation of his constitutional rights, pain, suffering, mental anguish, and humiliation; and
- b. That he be awarded punitive damages against the individual defendants; and
- c. That he be compensated for attorneys' fees and the costs and disbursements of this action; and

- d. For such other further and different relief as to the Court may seem just and proper.

Dated: New York, New York
July 27, 2015

Respectfully submitted,

By:

A handwritten signature in black ink, appearing to read "David B. Rankin", is written over a horizontal line.

David B. Rankin
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